AN FORAS RIARACHÁIN
INSTITUTE OF PUBLIC ADMINISTRATION

Certificate in Local Government Studies
(Accredited by NUI)

LESSON 12
Economic and Local Development and Local Elections

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LEARNING OBJECTIVES:

After studying this lesson, you should be able to:

- Outline the role of local authorities in supporting economic development and enterprise.
- Describe the local development system in Ireland and the reform process including the integration of the local government and local development systems.
- Identify the role of the community and voluntary sector and describe the structures which facilitate citizen engagement.
- Understand the processes involved in local elections.

12.0 INTRODUCTION AND OVERVIEW

This lesson explains the role of local authorities in the context of local and community development, promoting citizen engagement, and the election of citizens to serve as representatives of their communities. An effective local government system requires that local authorities exercise leadership in terms of the economic, social and cultural development of their areas for the benefit of local communities. It is critical that local communities have the opportunity and facility to influence the decisions of the local authority members who they elect to represent them through citizen engagement. It is also critical that local communities are empowered to exercise leadership within their communities through local development structures. While participating and voting in local elections will always be the foundation of citizen engagement in a representative democracy, many countries have also been experimenting with different ways of enhancing citizen engagement in local decision-making in between formal elections.

As the Putting People First local government reform programme argued:

> With its brief to develop and support sustainable communities, there is the potential for local authorities to play a very strong leadership role in working with other agencies to achieve better results on the ground … In keeping with its democratic mandate, the function of representing the interests of the community, and the vision of local government as the primary vehicle of governance and public service at local level, it is appropriate that there should be linkages between local government and local public services generally extending beyond the specific service delivery responsibilities of local authorities. (*Putting People First*, 2012, p. 36)

In addition to facilitating local development and empowering citizens, local authorities should be key influencers and this role should extend beyond the services delivered by local authorities. Local authorities should exercise a local leadership role on behalf of the communities they serve.

This lesson describes the role of local authorities in the promotion of economic development,

in facilitating local development and citizen engagement, and outlines the procedures for the election of local authority members.

12.1 ECONOMIC DEVELOPMENT

12.1.1 Putting People First (2012)

Local authorities can exercise their powers to positively influence local communities and to support enterprise and employment initiatives. Such powers include planning to make their administrative areas more attractive places to live, work and invest. Local authorities also have the power to *directly* invest in roads, recreation, enterprise, tourism and cultural assets, and the power to acquire land and property in order to perform any of their functions.

Putting People First (PPF) stated the overall vision for local government. It sought to deliver a system where local government will be the: "Main vehicle of governance and public service at local level – leading economic, social and community development ..." (2012, p. 1)

It also identifies four specific targets that must be achieved, one of which is:

> Enhancing the capacity of local government in promoting economic development and social progress, including the well-being of communities, and supporting job creation efforts and economic recovery generally. (*Putting People First*, 2012, p. 5)

Originally, the Local Government Act 1991 (and now the Local Government Act 2001) provided local authorities with a general power of "competence" to promote their local areas, and this can be achieved through the development of economic strategies for local areas, including branding of towns and cities as part of specific economic, investment or tourism initiatives. Local authorities can make strategic land investments and/or positively influence private sector investment.

PPF stated that there would be a stronger role for local government in promoting economic development, suggesting that "there is a strong rationale for increased local government involvement in economic development because of the economic impact of its functions generally, its links with enterprise, its local knowledge and leadership, economic initiatives by many local authorities, and its new local development and enterprise functions" (2012, p. iv).

Operation of a single local micro-enterprise support service through Local Enterprise Offices (LEOs) which were established to bring together the functions of the County and City Enterprise Boards and earlier local authority Business Support Units was a key element of the local government role in economic development. Other economic development functions highlighted in the reform programme included:

- The Regional Spatial and Economic Strategies (RSESs).
- A formal role for local authorities in promoting economic development, more explicitly provided for in legislation.

- Local authorities required to ensure that their mainstream functions and services facilitate and support enterprise and economic development.
- Local authorities to lead on economic development locally, working in conjunction with relevant agencies.
- Local authorities required to adopt Local Economic and Community Plans, in conjunction with the overall City/ County Development Plan.

The programme stated that the economic development role would be supported by a dedicated Strategic Policy Committee (SPC) in each local authority and, in many cases, a specific Director of Services for Economic Development.

12.1.2 Local Enterprise Offices

A key initiative in this area was the launch in 2014 of a network of Local Enterprise Offices (LEOs), providing enhanced resources to support start-ups and small enterprises throughout the country. The LEOs act as a "first-stop shop" providing financial and other support, such as business training and mentoring, advice and information on sources of support available on various aspects of business start-up and expansion.

The LEOs operate through a framework service level agreement (SLA) between Enterprise Ireland and each local authority. Under the terms of the SLA, Enterprise Ireland has significant oversight of the activities of the LEOs. The agreement provides that the local authority must prepare an enterprise development plan annually and the plan must be agreed with Enterprise Ireland. Enterprise Ireland supports and assists the LEOs in the promotion and development of small businesses at local level.

The key areas of LEO operations are:

- Providing information, advice and referral to small businesses and start-ups.
- Delivering training programmes for businesses.
- Providing mentoring supports and advice on management development.
- Providing financial supports through grant aid and/ or micro loans.
- Promotion of entrepreneurship.
- The provision of local enterprise development services which include contributing to county and area specific development plans, delivery of national initiatives and the development of appropriate enterprise structure.

LEOs have also played a key role in supporting businesses that had to deal with the fallout from key challenges such as Brexit and the Covid-19 pandemic. The LEOs are *not* separate individual bodies. They are business units within the local authority reporting ultimately to the Chief Executive, as with other units within the local authority. They are staffed by the combined resources of the staff of former county enterprise boards and the staff of the local authority.

Enterprise projects submitted for consideration for financial support are evaluated by an evaluation and approvals committee. The committee comprises of the Chief Executive of the local authority as chair, a representative from Enterprise Ireland, and five individuals with

specific areas of business expertise. LEOs have been very successful in the business support area as the following data shows.

LEO Highlights 2022

Source: Local Enterprise Offices – 2022 Impact Report

12.2 LOCAL DEVELOPMENT

12.2.1 Local Development in Ireland

Local development in Ireland has been delivered over recent decades by a network of different Local Development Companies (LDCs) and community and voluntary organisations. In many cases, they have been funded directly from national government through Pobal, which is also responsible for monitoring and evaluation.

A network of area-based partnerships (not-for-profit companies governed by boards) was created to tackle structural unemployment and social exclusion in disadvantaged urban and remote rural areas in response to the unemployment crisis of the early 1990s. By 2008, there were over 90 such partnerships – subsequently renamed LDCs. These partnerships have retained a high degree of autonomy under Service Level Agreements with a range of government departments and funding agencies. The number of LDCs was reduced through mergers to 49, and they have become larger, mainly county-based entities.

LDCs are not-for-profit organisations that provide community and rural development, labour market activation, social inclusion and social enterprise services across the country. This includes the delivery of community support services such as LEADER, local employment services, the national social inclusion programme (SICAP), Tús, Rural Social Scheme, and other programmes to individuals and community groups. The board of an LDC typically comprise of local, voluntary directors, public-sector personnel and often also encompass representatives of employers, unions and local Councillors. This work links with both Local Economic & Community Plans and Local Community Development Committees.

The community and voluntary sector has supported communities to define the needs of the disadvantaged, Travellers and minority groups, in both urban and rural areas. The importance of developing effective responses to these needs has been increasingly recognised by the State. A range of initiatives drawing on community work approaches were funded and supported, based on an understanding that solutions to poverty, social exclusion and inequality are best and most appropriately designed with the participation and input of those affected.

12.2.2 Integration of Local Government and Local Development

During the course of the development of the system, according to Putting People First, "a proliferation of local companies, bodies and agencies evolved under the auspices of various government departments, often to meet particular funding requirements, and usually with little local authority involvement or oversight" (2012, p. 31). While some efforts were made to facilitate the joint working of local authorities and LDCs, there remained significant scope for a more joined-up approach in 2012, when PPF was published. The Local Government/Local Development Alignment Steering Group was established by Government in 2011 to examine the scope for greater alignment between the local government and local development sectors and to advise on options for a more integrated delivery of local and community development services.

The report of the Steering Group recommended a more central role for local government in planning and monitoring local community development programming, while maintaining the role of local development entities in delivering community development programmes.

Among the Steering Group's recommendations were:

- A national Local and Community Development Policy should be developed to set out national priorities and a framework for the realisation of a cross-government approach at local level.

- A County/City Local Economic and Community Plan (LECP), encompassing all state-funded local and community development interventions, should be developed for each city/county area. This five-year plan, prepared as part of the normal local government electoral cycle, should set out an integrated approach to local authority community-focused programmes, local development programmes funded by government departments and agencies. Priorities for expenditure should be based on a detailed needs analysis and matched to available resources. It should be consistent with other local authority plans and it should be approved by the elected members.
- A Socio-Economic Committee (this was subsequently re-named in the 2014 Act as the Local Community Development Committees (LCDC)) should be established, on a statutory basis, by each county and city council with responsibility for planning and oversight of local and community programmes. It should be responsible for developing the LECP.
- Oversight responsibility for the management and disbursement of local and community development programme funds, the matching of resources to priorities and achievement of value for money in accordance with the County/City Local and Community Plan should be vested in the LCDC.
- Strategic planning for local and community development programmes should be based on local authority county/city boundaries.
- Local and community development programme administration costs should be set at a more sustainable level. This will require a shared approach to the determination of administration budgets by government departments/state agencies, including the standardisation of administration costs across all such programmes. Shared services, facility and accommodation arrangements should be agreed and implemented across local development companies and between county/city councils and local development companies.
- Robust systems for measurement and assessment should be developed to facilitate the planning, implementation of local, community development programmes, and interventions. The content of programmes should reflect national priorities and be based on locally identified needs and appropriate targeting of resources to the most disadvantaged.

The recommendations of the Steering Group were aimed at:

- providing a more central co-ordinating role for *local government* in local and community development
- achieving greater efficiency and effectiveness in local and community development programming
- improving the delivery of services for citizens and communities.

12.2.3 Local Community Development Committees

Part 6 of the Local Government Reform Act provided for the establishment of Local Community Development Committees (LCDCs) in each local authority area. Their goal is to enhance the strategic planning and co-ordination of local and community development activity. LCDC comprise public and private sector members, including local authority members and officials, state agencies and private sector local and community development

representatives. The functions of LCDCs are identified under the Act as including:

"a) to prepare and adopt the community elements of every 6 year Local Economic and Community Plan
b) to implement, or to arrange for the implementation of, the community elements of the Plan
c) to undertake a review of the community elements of the Plan within the period of 6 years ...
d) to monitor the implementation of the community elements of the Plan
e) to co-ordinate the implementation of local and community development programmes ...
f) to ensure effectiveness of the programmes ...
g) to pursue the co-ordination generally of all local and community development programmes ...
h) to consider and adopt a statement in respect of the economic elements of a draft Plan
i) not later than 31st March in each year, to prepare, adopt and submit to the local authority a report in relation to the performance of its functions during the year immediately preceding the year in which the report is submitted."

The Committee, in performing its functions, must have regard to:

"a) the resources that are available ...
b) the need for co-operation with, and the co-ordination of its activities with those of local authorities, public authorities and publicly funded bodies to ensure efficiency and economy ...
c) the need for consultation with public authorities and publicly funded bodies.
d) the need for consistency with the policies and objectives of the Government or any Minister of the Government or other public authority in as far as they may affect or relate to the Committee's functions.
e) the need to integrate sustainable development considerations into policy development and implementation.
f) the need to promote social inclusion."

12.2.4 Membership of LCDCs

Guidelines issued by central government specify that the majority of members on the LCDC should be made up of 'private sector' members, with 'public sector' members in a minority. Public sector members include local Councillors, local authority officials, and state agencies. Private sector (or non-public sector) interests are drawn from community and voluntary interests, social inclusion interests, environmental interests, local development and community development bodies, farming and agriculture interests, business/ employer interests, trade union interests, and other relevant local and community interests.

Thus in LCDCs with 19 members, there must be a maximum of nine public sector members and a minimum of 10 private sector (namely non-public sector) members. Some LCDCs may have slightly smaller or larger overall numbers, but reflecting a similar balance between public and private sector members.

Local Authorities

Both local authority members and local authority officials represent local government on the LCDC. A 19-person LCDC has a minimum of three local Councillors, reflecting, as far as is practical, the different municipal districts within the local authority area. Where the overall number of LCDC members is smaller, this can be reduced to two Councillors, or where the overall number is higher, this can be increased to up to five Councillors.

Two local authority officials are usually also represented on the LCDC. The Chief Executive or a local authority official nominated by the Chief Executive is a member, as is the Head of Local Enterprise.

Public Authorities (incl. State agencies)

At least two members of the LCDC are drawn from public authorities providing services in the local authority area. These should involve public authorities with a specific local focus such as the HSE, Department of Social Protection / Employment, Education and Training Boards, Children Services Committees, Third Level Higher Education Institutions, Teagasc, etc. The guidelines specify that public authorities with a more regional/ national remit or focus (such as IDA or Enterprise Ireland) would not be represented on the LCDC. Údarás na Gaeltachta would usually nominate a representative on the LCDC for those local authorities with Gaeltacht areas (particularly in Cork, Kerry, Mayo, Galway and Donegal counties).

Community and Voluntary Interests

Community representatives are drawn from each of the three 'colleges' of the Public Participation Network (PPN), namely those representing community and voluntary interests, social inclusion interests, and environmental interests (see below). At least two LCDC members are drawn from the PPN to reflect community and voluntary interests, two LCDC members are drawn from social inclusion interests on the PPN, and one LCDC member is drawn from environmental interests on the PPN.

Local Development Companies (LDC) and Community Development Bodies

In the first instance, a maximum of one nominee should be sought from each local development company in the LCDC's administrative area. A maximum of three members must be sought to represent the LDCs in the area. Where there are more than three companies, the Chief Officer should seek three nominees to represent all the companies.

Other Local Community Interests

In addition to members drawn from the PPNs, other LCDC members may be sought to represent other non-governmental, civil society or local community groups or pillars, such as farming/ agriculture interests, business/ employers interests, trade union interests. Based on the focus of the LEADER programme on rural development, the farming/ agriculture sector and business/ employer interests are usually represented on the LCDC.

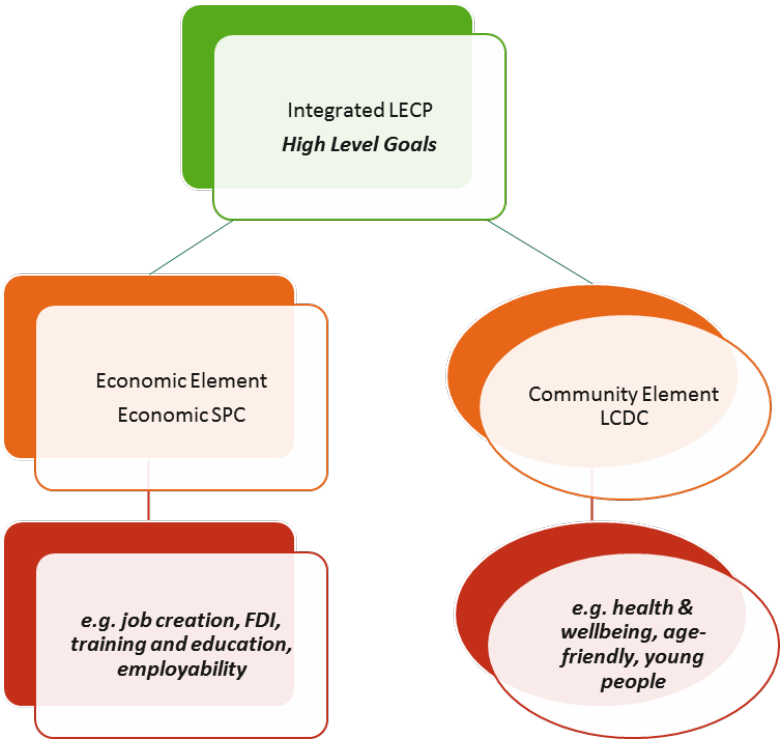
12.2.5 Local Economic and Community Plan (LECP)

A key function of LCDCs is to develop and oversee the implementation of the community elements of the Local Economic and Community Plan (LECP). The formulation of the LECP is part of the overall push to ensure a more co-ordinated and collaborative approach to community development planning and service delivery. In doing this, the Plan must focus on measures which:

- Enhance the quality of life and well-being of communities – this can include measures aimed at tackling poverty, disadvantage and social inclusion, that supporting training, up-skilling and employment creation, and the provision of infrastructure and community facilities.
- Support social enterprise, social capital, volunteering and active citizenship.
- Foster community involvement in policy development and decision-making processes relating to planning, development and delivery of services.

Guidelines issued by central government state that:

- The LCDCs develop the *community elements* of the LECP, while the SPC for Economic Development and Enterprise develop the *economic elements* of the LECP (students should note this separation of roles). The local authority must adopt the LECP as a whole, into which both the economic and community elements will be integrated — see diagram below.
- Each LECP must be consistent with Regional Spatial and Economic Strategies (RSESs) and the National Planning Framework. The LECP must also be consistent with the statutory City/ County Development Plan.



12.3 CITIZEN ENGAGEMENT AND THE PUBLIC PARTICIPATION NETWORK

12.3.1 The Community and Voluntary Sector

Putting People First identified the need for local government to build strong relationships with, and gain the interest of, local people and to provide for better engagement with citizens. The development of a framework to support the relationship between the state and the community and voluntary sector was identified in a White Paper published back in 2000.

The White Paper recognised that voluntary activity forms the very core of all vibrant and inclusive societies. The community and voluntary sectors were considered to be essential partners in economic and social development. It was further considered that democracy is not just about getting a day out to vote at elections every few years. It is also about participating in society and making one's own personal contribution to social life, to the development of local communities, or to the welfare of society as whole or particular disadvantaged groups within it.

The White Paper identified that voluntary activity spans the whole range of social activity and is a vital element of democracy. A strong democracy enhances and protects the capacity of citizens to participate. In a strong democracy, people regard the State as just one player among others, not the answer to every problem. A range of other stakeholders, such as the private sector, trade unions, religious organisations, non-governmental organisations, environmental groups, sporting organisations, local community and residents' associations all play a pivotal role in democratic life and in continued economic and social progress.

An active community and voluntary sector contributes to a more democratic society and active citizenship, provides opportunities for the development of participative structures, at national but also especially at local level.

A Working Group on Citizen Engagement was set up in September 2013. The Working Group considered a number of different areas of work:

- Definitions and guiding principles on citizen engagement.
- Devising a participatory mechanism for citizens in the Local Government structures being reformed during 2013-14, including ways to strengthen and enhance local authority relationships with local groups.

12.3.2 The Public Participation Network (PPN)

The Working Group proposed that a PPN be established in each local authority area, and guidelines for public participation networks were issued in 2014. These guidelines stated that "the PPN is the main link through which the local authority connects with the community, voluntary and environmental sectors without prejudice to other consultation processes. The aim of the structures and processes is to facilitate and enable the public and local organisations to articulate a diverse range of views and interests within the local government system, not to reduce or homogenise this diversity". A network was set up in each county/ city and municipal district.

The guidelines advised that members of the local community interact with local government at different levels. The PPN provides a platform through which the public and local groups can interact with local government, as well as a means through which groups can nominate representatives on decision-making committees and bodies within local government. It can also help in the sharing of information between local groups represented on the PPN.

According to central government guidelines on PPNs (2014, p. 2), the role of the PPN includes:

"1. To contribute to the local authority's development for the County/City vision for the well-being of this and future generations.
2. To facilitate opportunities for networking, communication and the sharing of information between environmental, community and voluntary groups and between these groups and the local authority.
3. To identify issues of collective concern and work to influence policy locally in relation to these issues.
4. To actively support inclusion of socially excluded groups, communities experiencing high levels of poverty, communities experiencing discrimination, including Travellers to enable them to participate at local and county level and to clearly demonstrate same.
5. To encourage and enable public participation in local decision making and planning of services."

The PPN is organised at county/city level and at municipal district level. Each PPN has:

- A municipal district plenary in each district that deals with issues at a municipal level.
- A county/city plenary that deals with county/city level issues.
- Linkage groups which deal with specific issues or thematic areas.
- A secretariat at county/city level that acts as a facilitation and communication mechanism.

Municipal District PPN

Each municipal district has a PPN, consisting of community, voluntary and environmental organisations within the district. The plenary of each district PPN nominates one person to the secretariat for the county/ city PPN. Member organisations of the municipal district PPN may also be members of the city/county PPN.

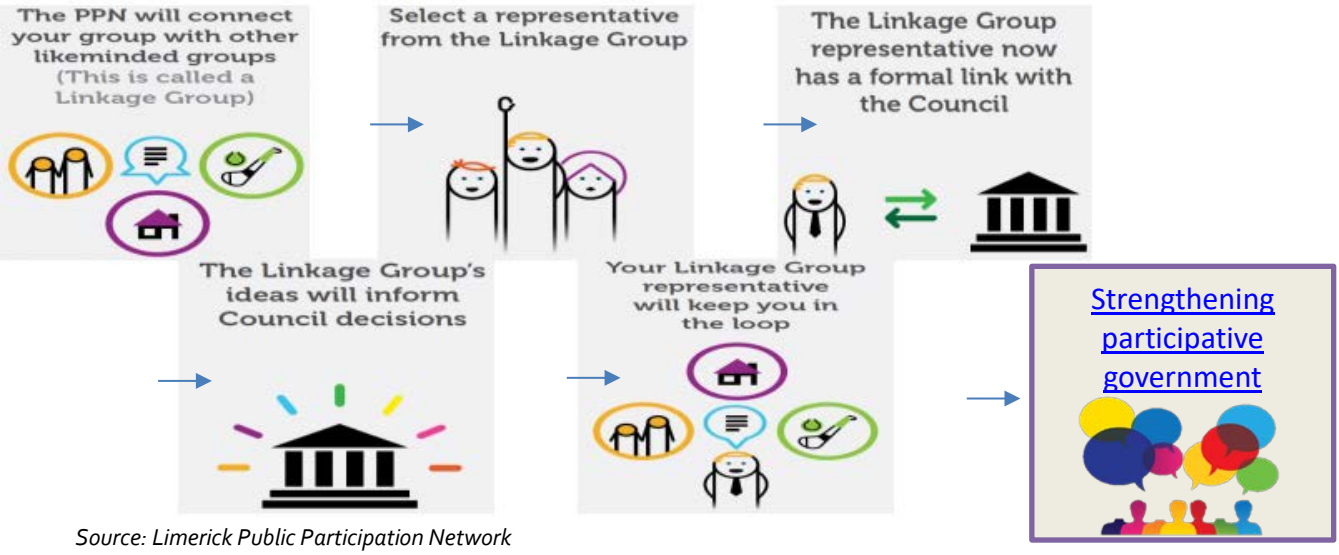
County/City PPN

All registered organisations in the county/ city are members of the county/city PPN. The PPN is the main channel through which people are selected to participate in various processes of the county/ city councils and their boards/ committees, such as SPCs, the LCDC, and other local boards or committees. The county/ city PPN meets formally at least twice a year. Each member organisation has one vote.

Secretariat

Each city/county PPN has a secretariat that must meet at least four times a year. The secretariat should be provided with an office and have a resource worker assigned to the PPN by the local authority.

How the PPN Operates



Source: Limerick Public Participation Network

12.4 LOCAL ELECTIONS

12.4.1 Introduction

Along with the participatory mechanisms for citizen engagement described above, it is also true of course that the expression of the will of the people through the electoral process is a fundamental right in a democratic state and remains the basis for the system of democratic local government. The freedom to vote should not be taken for granted. It is accordingly a matter of serious concern that many registered voters do not exercise their franchise. This can lead to a weakening of representative democracy and confusion in the minds of citizens as to where power resides and who is controlling events that affect their lives. In this context, local elections are particularly relevant. The following deals primarily with procedural and legal issues relating to the Register of Electors, eligibility for election, the polling process and the subsequent counting of votes.

It should be borne in mind that election candidates spend considerable time, energy and personal financial resources coupled with considerable inconvenience to their families. The human aspect should *never* be overlooked. This is particularly evident as the count results emerge and the personal trauma for a losing candidate (particularly if already a sitting member) can be particularly difficult. Consequently, there is a very clear obligation on the Returning Officer and all staff to ensure that the election is conducted fairly and in full compliance with the law and with a sympathetic regard to candidates and their representatives. Every vote must be properly accounted for, the wishes of the voters in applying their preference have to be fairly and reasonably interpreted.

As a nation, we should be very appreciative of the fact that candidates are prepared to put their names forward in furtherance of the democratic process that provides guidance, leadership and management of major issues affecting all our lives.

Historically, local elections were generally held every five years in the month of June but were often postponed by the government for different reasons. Following the 1999 amendment of the Constitution by inserting a constitutional guarantee for local elections, such manipulation of local election dates ended. Section 26 of the Local Government Act, 2001 states that "An election of members of every local authority shall be held in the year 2004 and in every fifth year thereafter."

The actual polling day is fixed by order of the Minister with responsibility for local government and elections, along with the times when polls open and close on the polling day. Given issues that can arise with weather or transport difficulties, polling on islands may take place in advance of polling day and the polling period may be reduced to four hours.

12.4.2 Register of Electors

The preparation and publication of the Register of Electors is a very important function of local authorities. The right to vote is a fundamental one in a democratic state and, consequently, the loss of such a right due to mistake, lack of knowledge or from any other cause, is a serious matter. Local authorities take great care in compiling the Register and this

activity is widely publicised. In the final analysis, it is a matter for each eligible voter to ensure that his or her name and addresses are included and accurately researched. However, each local authority must do its utmost to ensure that the Register is as accurate and up to date as possible.

Legislation relating to elections and the register are scattered across a wide range of Acts and Regulations. 'Local electoral areas' or LEAs serve as the constituencies within county and city councils, within which a set number of Councillors are elected. The Minister responsible for Local Government can determine local electoral area boundaries on the basis of an independent review conducted by the Electoral Commission to examine local electoral areas to determine their number within a council, the number of seats within each electoral area and the geographical boundaries of the area. This has to be done to reflect population changes and to ensure fairness of representation in advance of local elections. The same occurs for Dáil elections. Before the establishment of the Electoral Commission in 2023, local electoral areas were reviewed by specially appointed Local Electoral Area Boundary Committees which made recommendations to the Minister to advance of local elections.

12.4.3 Local Elections

Structure and Membership of Local Authorities

Aside from TDs, MEPs and the President, the elected members on local councils are the only office-holders which registered voters democratically elect. The electorate for local councils is the largest and widest electoral base in Ireland. All residents (citizens and non-citizens) in an area may vote in local elections, whereas the eligibility to vote for other elections (for the Dáil, the Presidency and the European Parliament) is linked to citizenship – see below. There are 31 local authorities in Ireland, with 949 elected members. The turnout in the 2024 local elections was 49.4%. This is considered low, bearing in mind that polling day also involved voting in the European elections. Local government electors elect the councillors of local authorities on a system of proportional representation.

Eligibility for Election

Every person who has reached the age of 18 years is eligible for election or co-option to membership of a local authority. Certain persons are deemed ineligible, including MEPs, Judges, TDs, Senators, Ministers, Ministers of State, and Gardaí. Candidates for local elections are *not* required to be citizens of Ireland. This is consistent with the EU Treaties which provide that "every citizens of the [European] Union residing in a Member State of which he is not a national shall have the right to vote and to stand as a candidate at municipal elections in the Member State in which he resides, under the same conditions as nationals of that State" (Treaty on the Functioning of the European Union, Article 22).

Register of Electors

County and city councils compile a Register of Electors each year. Everybody on the Register is entitled to vote at a local election. Those who are 18 years or over on or before 15th February each year, and who are otherwise qualified, are entitled to be included on the

Register. The letters before a person's name on the Register have the following meaning:

D: British Citizen – may vote at Dáil, EU and local elections only.
E: EU Citizen – other than British or Irish – may vote at European Assembly and Local Elections only.
L: Non-Irish, British or EU Citizens (e.g. Americans) – may vote at local elections only.
S: Postal or Special Voter – e.g. members of the Gardaí, Defence Force personnel, diplomats or disabled persons.

A draft of the Register is published each year and within a short timeframe individuals can apply for correction in the draft register. The County Registrar, whose decision may be appealed to the Circuit Court, adjudicates on these.

Persons who are not on the Register when an election is called can make 'late' applications for inclusion in a supplement to the Register, which is published prior to polling day at an election. An application may be made at any time, but in order to be considered for the supplement to be published at an election the application must be received by the local authority at least 15 working days before the polling day.

12.4.4 Voting Arrangements-the Polling Scheme

Generally, electors vote in person at their local polling station. Local authorities are responsible for drawing up polling schemes for electoral areas. A polling scheme specifies the polling station in which people must vote. It provides for the number of polling stations in use during an election. The making of a polling scheme is a reserved function.

Postal voting is available to members of the Gardaí and the Defence Forces, as well as civil servants (and their spouses) attached to Irish embassies and missions abroad, as well as to voters living at home who cannot vote at a polling station due to a physical illness or disability.

A further form of postal voting was introduced in The Electoral Act, 1997 and is available to voters whose occupations are likely to prevent them from voting at their local polling station, such as fishermen, airline pilots, etc., along with full-time students who are registered to vote at home, but who are living elsewhere while attending a third level educational institution in the State. Under this arrangement, a ballot paper is posted to the voter at home who must have his or her declaration of identity witnessed by a Garda before marking the ballot paper, and returning the ballot by post to the returning officer.

Special voting is available to voters living in a hospital or nursing home who again cannot vote at a polling station due to a physical illness or disability. At an election or referendum, a special presiding officer accompanied by a member of the Garda Síochána delivers a ballot paper to each person on the special voters' list. A medical certificate must support each application for inclusion on the special voters' list.

12.4.5 Organising the Election/Role of the Returning Officer

The responsibility for conducting the election to each local authority rests with the Meetings Administrator of the local authority in his or her capacity as Returning Officer. The local authority meets the cost of running the local election. The Returning Officer has the following specific duties:

- to conduct the local election
- to ascertain and declare the results of the election
- to furnish to the local authority a return of the persons elected to be members of the local authority.

Local authorities are generally divided into two or more local electoral areas, and an election is held in respect of each local electoral area for the number of council members assigned to that area. In the case of Dáil elections, European elections and referenda, the County Registrar is the Returning Officer. The electoral areas for local authorities do not always correspond to Dáil constituencies.

12.4.6 Nomination of candidates

The period (which is one week) for nominating candidates to stand at local election occurs 4 weeks before polling day. An individual can either nominate him/herself as a candidate or be nominated by a local government elector registered in the area concerned. An individual can be nominated as a candidate to stand in more than one area. A candidate may decide to include party affiliation on the nomination paper.

12.4.7 The Poll

The local authority may issue polling information cards to each elector on the register. This card sets out the date of poll, the elector's number on the register and identifies the polling station at which the elector can vote. The Returning Officer also sends ballot papers by post to postal voters, and arranges to have ballot papers brought to electors with physical disabilities registered on the special voters list.

The Returning Officer makes provision for polling stations at each polling place. In most cases schools or other public buildings are used. Each polling station is supervised on polling day by a presiding officer assisted by a polling clerk. A candidate may be represented at a polling station by an agent who assists in the prevention of electoral offences (personation).

12.4.8 Voting

The polls at local elections are conducted based on the electoral system known as Proportional Representation by means of the Single Transferable Vote (PR-STV). Except in cases where a single candidate is to be elected (such as a Directly-Elected Mayor), the PR-STV system typically involves multi-member electoral areas – that is that a set number of seats are assigned to each constituency or local electoral area. The poll is carried out as a secret ballot.

Traditionally, the voter arrives at the polling station and supplies their name and address. Once this is recorded he / she is given a stamped ballot paper in the polling station. Voters can be required to produce evidence of their identity and, if when asked they fail to do so, will not be permitted to vote. Where the presiding officer is satisfied as to the elector's identity, a stamped ballot paper with the official mark is handed to the elector.

The elector then takes the ballot paper to a voting compartment to record their vote in secret. The names of the candidates for election in the electoral area concerned appeared in alphabetical order on the ballot paper, together with their political party affiliation where this applies. The voter then registers the order of his / her choice by writing the number '1' opposite the name of the candidate who is his / her first choice to be elected, and, if they wish, the number '2' opposite the name of their second choice, '3' opposite the name of the third choice, and so on.

Through this process, the voter registers an instruction to the Returning Officer to transfer their vote to the second choice candidate if the first choice receives more than the quota of votes necessary for election or is excluded (through receiving so few votes as to have no chance of election). If the same situation applies to the second choice, the vote may be transferred to the third choice and so on. After completing this process of expressing their preferences by marking the ballot paper, the voter folds the ballot paper and places it in a ballot box.

Voters that have a visual impairment or physical disability can be assisted by the presiding officer or by a companion. The presiding officer can also assist persons with a reading or writing disability, which might prevent them from voting without help. The presiding officer may order the arrest of any person suspected of committing electoral offences.

12.4.9 The Count

The count at a local election normally starts on the day after polling day. The Returning Officer arranges for all the envelopes containing the postal and special voters' ballot papers for a particular area to be opened, the contents checked, and the valid ballot papers placed in a ballot box. Then ballot boxes are then opened and verified, through a comparison of the number of ballot papers in each box against the account furnished by the presiding officer.

The ballot papers for each electoral area are then thoroughly mixed (this process is critical for distributions in later counts), after which they are sorted according to the first preferences recorded for each candidate, with invalid papers being rejected. Rejection can arise from a number of reasons, including the lack of official mark, a blank ballot paper or no clear 1st preference indicated.

The count is designed to be a transparent process, and happens in the presence of candidates and / or their agents, who can observe the process.

12.4.10 Quota

The quota used in Irish elections is the so-called 'Droop Quota', named after H.R. Droop who first proposed it in 1869. The Droop quota is based on the principle of calculating the smallest number of votes that suffices to elect candidates to fill all the seats being contested (in a multi-member constituency or area), whilst being large enough to prevent any more being elected. It is usually expressed through the following formula:

$$\textbf{Quota} = \frac{\textbf{No. of Valid Votes}}{\textbf{No. of Seats + 1}} \textbf{ + 1}$$

A simple example:

Electorate	=	12,000	Seats 4
Valid Poll	=	10,000	Candidates 7

$$\text{Quota} = \frac{\text{(Valid Poll) } 10{,}000}{\text{(Seats) } 4 + 1} + 1 = \mathbf{2{,}001}$$

Note: If the application of this formula gives rise to a fraction, the faction is disregarded.

12.4.11 Transfer of Surplus

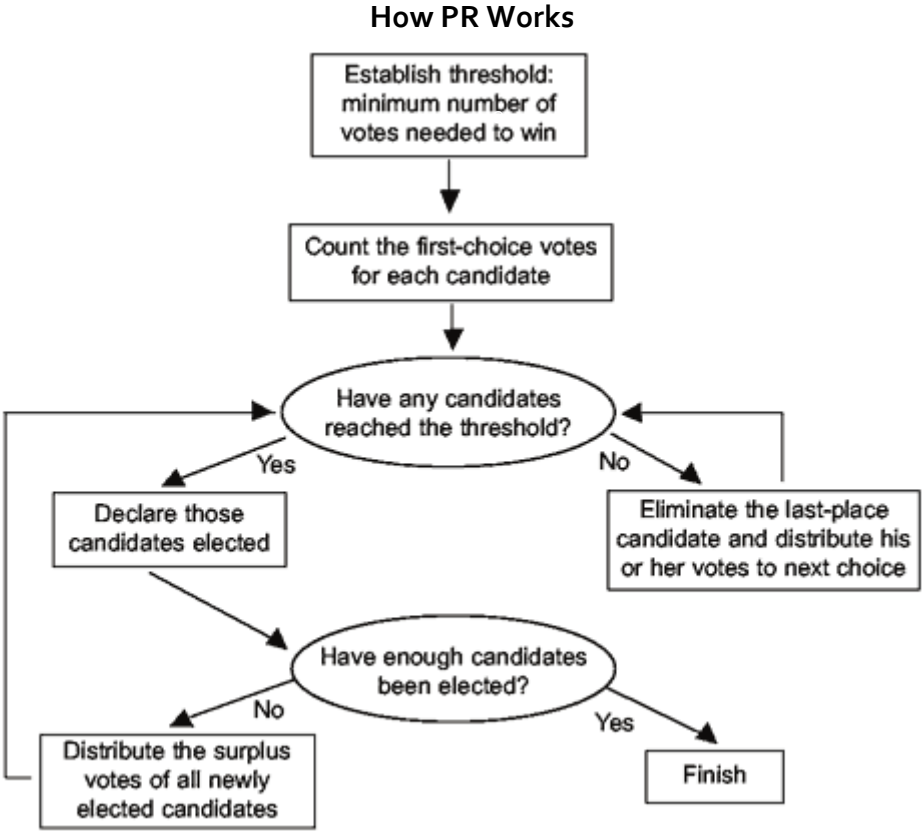
At the end of the first count, if any candidate receives a number of votes equal to or greater than the quota, he or she is deemed elected. Where a candidate receives in excess of the quota, the candidate's surplus votes are transferred proportionately to the remaining candidates. Where two or more candidates exceed the quota at the same count, the larger surplus is distributed first.

Where no candidate has a surplus, or if the surplus is insufficient to elect one of the remaining candidates or to materially affect the progress of the count, the lowest of the remaining candidates is excluded. When a candidate is excluded, his or her votes are transferred to the other remaining candidates according to the next preference indicated on the ballot papers. Where a ballot paper is to be transferred and the next preference indicated on it is for a candidate that has already been elected or excluded, then the vote passes to the next candidate for whom a valid preference has been expressed. In this way, a voting paper continues to be 'live' well into the count and the vote may well have a material bearing on the outcome of the election. In the 2019 local elections, for example, Limerick City North reached the 19th count before the last seats were filled.

12.4.12 Completion of Count

The counting process continues in this way until all the seats have been filled. If a situation arises through the process where the number of seats remaining to be filled is equal to the number of candidates still in the running, then these remaining candidates are declared elected without having reached the quota.

Below is a diagram showing how proportional representation works.



The difference between being elected or failing to get elected could depend on one or two votes out of thousands, and even a single error during the manual counting could make a difference. The Returning Officer can require or the candidates can request a complete or partial recount of all votes cast at an election. Recounts sometimes have gone on for days after the polling day.

12.4.13 Results of the Election

When the count is completed, the Returning Officer declares the results and gives public notice of the election results, returning the names of the those elected to the local authority concerned. If a member elected to a local authority subsequently vacates their council seat (for example due to death, resignation, or by being disqualified due to that person being elected as a TD or Senator), such situations are treated as what are known as 'casual vacancies'. Casual vacancies are filled by co-option by the other members (see below).

The outcome of a local election can be challenged by way of petition in the Circuit Court within 28 days of the declaration of the results.

12.5 FILLING OF CASUAL VACANCIES

Vacancies on a local authority caused by the death, resignation or disqualification (this can

arise for example if a local Councillor is elected as a TD, Senator or MEP) of members elected are classed as 'casual vacancies'. Such vacancies are filled by co-option. The procedure is set out in Section 19 of the Local Government Act, 2001. Candidates nominated by a member must give their written consent to serve on the Council prior to their nomination. The Council must then ratify them. The co-opted member holds his or her seat until the next election.

12.6 ELECTION OF MAYOR/ CATHAOIRLEACH/ CHAIRMAN

Local authorities annually (at specifically convened Annual General Meetings) elect a Mayor/ Cathaoirleach (Lord Mayor in the case of Dublin and Cork City) from among their councillors. The procedures to be followed in the election of a Mayor/ Cathaoirleach are set out in Section 37 of the Local Government Act, 2001. It is peculiar in that it is the only time that the Mayor/ Chairman (outgoing) does not have a casting vote. The Mayor presides at all meetings of the council. The use of alternative titles to Cathaoirleach and Leas Cathaoirleach in the case of city councils, city and county councils and certain municipal districts is provided for in section 32 of the Local Government Act 2001 (as amended by section 37 of the Local Government Reform Act 2014).

In relation to municipal districts, the Act provides for the use of the title "Mayor" or "Deputy Mayor" in the case of any district which contains a city, borough or town the population of which, when rounded to the nearest 1,000 as shown in the latest census report of the Central Statistics Office, is equal to or greater than 20,000.

12.7 DIRECTLY ELECTED MAYOR

At the 2019 local elections, the citizens of Limerick supported a plebiscite to create the position of Directly Elected Mayor for Limerick. The electorate of Cork and Waterford did not give majority support for this proposal. This new position is a very material change for our local government system. Traditionally, there has been a clear distinction between reserved and executive functions. The introduction of a Directly Elected Mayor in Limerick involved a three-way separation of powers at the local level, encompassing the Mayor, the Council and the Director General (the reformed position of Chief Executive for Limerick).

The role and powers of the Limerick Mayor were legislated for under the Local Government (Mayor of Limerick) and Miscellaneous Provisions Act 2024. It was not intended that any existing reserved functions will be vested in the new Mayor. This means that some executive functions have transferred from the Chief Executive to the new Mayor, with the Mayor bringing forward proposals (for example preparing the draft annual budget) for approval by the Council. The Mayor also interacts regularly with national Ministers on the delivery of public services in Limerick through the Limerick Mayoral and Government Consultative Forum. A separate position of Príomh Chomhairleoir was established to take over the chamber related duties of the Cathaoirleach, in particular chairing council meetings, although the ceremonial functions of the Cathaoirleach were transferred to the Directly-Elected Mayor. The Príomh Chomhairleoir is elected by the council each year. The Director General and his / her staff retain responsibility for managing the finances of the local

authority, HR and personnel matters, entering contracts, the administration of individual schemes and allocation of grants, and enforcement matters and legal proceedings. The Mayor serves a term of 5 years and is paid a salary equivalent to a Minister of State.

In June 2024, John Moran was elected as Ireland's first Directly-Elected Mayor as Mayor of Limerick. The Limerick experience was widely seen as a test case, to see whether the position could potentially be established elsewhere – indeed the 2024 legislation establishing the Limerick Mayor also made provision for the potential holding of plebiscites on whether a Directly-Elected Mayor should be established in other areas.

In 2022 a Citizens' Assembly on a Directly-Elected Mayor for Dublin city and county was established. It reported in 2023 and recommended that a Directly-Elected Mayor for Dublin would work alongside the existing four Dublin local authorities and should entail a significant devolution of powers from central government Departments and agencies. It was expected that these proposals would also have to be approved by the electorate in Dublin through a plebiscite.

12.8 MEMBERS' EXPENSES

Items included under this heading include:

- Representational payment to local Councillors.
- Annual expenses allowance for attendance at meetings.
- Expenses for attendance at approved training events.
- Allowance for expenses for attendance at conferences.
- Allowance payable to Cathaoirligh and Leas-Chathaoirligh of local authorities that reflects the extra demands on them to officiate at functions and to operate as the first citizen of the city or county.
- Strategic Policy Committees chairperson's annual allowance.
- Allowance payable to Cathaoirligh of Municipal Districts.
- Mobile phone allowance.

A public register of attendances and payments must be maintained by each local authority and must be published on the local authority website. Elected members must notify their local authority of attendance at all meetings or bodies to which he/she was elected, appointed or nominated by the authority.

Expenditure on these items receives a great deal of public attention, and journalists in particular have sought details of individual councillor's travel claims under the Freedom of Information Act. Details of attendance at conferences must be published in the annual report of each authority and the approval of the Council is required for such attendance.

KEY CONCEPTS

- Local Enterprise Office (LEO)
- Local Economic and Community Plan (LECP)
- Regional Spatial and Economic Strategy (RSES)
- Local Development Company (LDC)
- LEADER Groups
- Area Based Partnerships
- Local Community Development Committee (LCDC)
- Public Participation Network (PPN)
- Linkage Groups
- Register of Electors
- Local Electoral Area (LEA)
- Polling Scheme
- Returning Officer
- Proportional Representation by means of the Single Transferable Vote (PR-STV)
- Droop Quota
- Postal Voter
- Special Voter
- Casual Vacancies
- Co-option
- Mayor / Cathaoirleach
- Directly-Elected Mayor

STUDENT ACTIVITIES

1. Examine the activities of the Local Enterprise Office (LEO) in your area, including the types of supports provided, the number of local companies supported, and the local campaigns being run.

2. Examine the achievements of your local authority in respect of economic development performance indicators by reviewing the latest NOAC report on performance indicators. How do these results compare with other similar local authorities?

3. Identify the membership of the LCDC for your area, the local development companies and state agencies represented, and the activities of the committee at local level.

4. Consult the membership of the PPN for your area. Consider the balance between community, social, and environmental organisations represented, and any areas of work that have been prioritised by the PPN.

5. Consult the Polling Scheme for local elections in your local authority, and the subdivision of the county / city into different areas and divisions for electoral purposes. How do these align with municipal district / area committee structures?